

An Act

ENROLLED HOUSE
BILL NO. 4336

By: Moore of the House

and

Gollihare of the Senate

An Act relating to professions and occupations; amending 59 O.S. 2021, Section 650, which relates to interventional pain management license; adding definition; modifying definitions; requiring penalties for violations; and providing an effective date.

SUBJECT: Professions and occupations

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 650, is amended to read as follows:

Section 650. A. This act shall be known and may be cited as the "Oklahoma Interventional Pain Management and Treatment Act".

B. As used in this section:

1. "Acute pain" as defined in the Uniform Controlled Dangerous Substances Act, Section 2-101 et seq. of Title 63 of the Oklahoma Statutes;

2. "Chronic pain" means a pain state which is subacute, persistent and intractable as defined in the Uniform Controlled Dangerous Substances Act, Section 2-101 et seq. of Title 63 of the Oklahoma Statutes;

~~2.~~ 3. "Fluoroscope" means a radiologic instrument equipped with a fluorescent screen on which opaque internal structures can be

viewed as moving shadow images formed by the differential transmission of X-rays throughout the body; and

~~3.~~ 4. "Interventional pain management" means the practice of medicine devoted to the diagnosis and treatment of chronic pain, through the use of such techniques as:

- a. ablation of targeted nerves,
- b. percutaneous precision needle placement within the spinal column with placement of drugs such as local anesthetics, steroids, analgesics in targeted areas of the spinal column, or
- c. surgical techniques, such as laser or endoscopic discectomy, intrathecal infusion pumps and spinal cord stimulators.

C. It shall be unlawful to practice or offer to practice interventional pain management in this state unless such person has been duly licensed under the provisions of the Oklahoma Allopathic Medical and Surgical Licensure and Supervision Act or the Oklahoma Osteopathic Medicine Act.

D. Nothing in this section shall be construed to forbid the administration of lumbar intra-laminar epidural steroid injections or peripheral nerve blocks by a certified registered nurse anesthetist when requested to do so by a physician and under the supervision of an allopathic or osteopathic physician licensed in this state and under conditions in which timely on-site consultation by such allopathic or osteopathic physician is available.

E. A certified registered nurse anesthetist shall not operate a freestanding pain management facility without direct supervision of a physician who is board-certified in interventional pain management or its equivalent. Any violation of this section by a registered nurse shall be considered unprofessional conduct under the Oklahoma Nursing Practice Act. Such violation may be subject to the full range of penalties available under the Nursing Practice Act including but not limited to administrative fines or discipline up to revocation of a license as decided by the respective Board.

F. Except subsection E of this section, any violation of this section by a physician shall be considered unprofessional conduct under the Oklahoma Allopathic and Surgical Licensure and Supervision

Act or the Oklahoma Osteopathic Medicine Act. Such violation can be subject to the full range of penalties available under the acts including but not limited to administrative fines or discipline up to revocation of a license as decided by the respective Board.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 11th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 5th day of May, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____